

Shanghai 上海, 3/1/2018

主题: 聘用意向书

Subject: Letter of Offer of Employment

尊敬的周尚军先生,

Dear MR. ZHOU SHANGJUN

我们很高兴地通知您, 经过认真考虑, 上海桂垚信息科技有限公司, 现决定向您发出聘用意向。在这里需要向您说明的是, 此聘用意向书并不是您与公司的劳动合同, 亦不建立您与公司的劳动关系。公司与您的劳动关系的建立取决于双方劳动合同的签订。

We are pleased to inform you that after careful consideration, Shanghai Guiyao Tech Co., Ltd., have decided to issue this offer of employment to you. Please note that this letter does not constitute an employment contract or create an employment relationship. Your employment with the Company is subject to the execution of an employment contract.

岗位/职责:

Position / Duties:

您将工作在<大陆汽车投资(上海)有限公司 BU IC>, 职位为<软件工程师>。

Your initial position will be BU IC of the Continental.

您将履行公司指派的、与您的工作职位相符合的所有行为、职责和义务。公司可能要求您承担除以上职责或代替以上职责的其他职位的职责。

You will perform all acts, duties and obligations and comply with such orders as may be designated by the Company and which are reasonably consistent with your job title. The Company may require you to undertake the duties of another position, either in addition to or instead of the above duties.

工作地点:

Place of Work:

您的工作地点将为[上海市杨浦区大连路 538 号]。

Your place of work is the Company's premises located at [No.536 Dalian Rd. Yangpu District, Shanghai].

全职工作:

Full-time Employment:

您将被公司聘用为全职员工，聘用期限为<3>年，自 2018 年 6 月 11 日开始，至 2021 年 6 月 10 日期满。

You will be a full-time employee of the Company and the term of your employment with the Company will be three[(3) years] commencing from JUN. 11th, 2018 and expiring on JUN. 10st, 2021.

薪酬与福利:

Compensation and Benefit:

根据公司现行薪酬/福利结构（可能不时被公司修改或重新审阅）。

Pursuant to the Company compensation/benefit structure as may be reviewed and amended by the Company from time to time.

您将获得年总收入，金额为：

you will receive a **Yearly income** which is

Gross RMB <11,000*12 + 11,000*4> , 基本月收入 6,000

试用期:

Probation Period:

您的试用期为 (6) 个月，从聘用开始之日起计算。公司将在试用期结束时对您的表现进行评估。

Your probation period will be (6) months, starting from the commencement date of your employment. The Company will conduct an assessment of your performance before the end of the probation period.

休假权利:

Leave Entitlement:

带薪年假: 员工在第一、二年有权享有 (5) 个工作日的带薪年假，第三至四年有权享有 (8) 个工作日的带薪年假，第五年及以上年份有权享有 (10) 个工作日的带薪年假。但员工的休假安排不得影响公司正常的经营运作。如果员工被聘用少于一年，带薪年假将按照雇佣的月数按比例相应计算。

Paid Holidays: The Employee shall be entitled to (5) working days of paid holiday in the first and second service year, (8) working days of paid holiday in the third to fourth service year, (10) working days of paid holiday in the fifth and above service year, as long as the schedule of the Employee's holiday does not interfere with the Company's normal business operations. If the Employee has been employed for less than one year, the paid holidays will be given corresponding to the number of months of employment on a pro rata basis .

保密协议:

Confidential Agreement:

您需要遵守公司的保密协议，且必须在劳动关系建立之前签署该协议。

You will be required to enter into a confidential agreement with the Company before the commencement of your employment with the Company.

声明及保证：

Representations and Warrants :

您声明您不受雇于其他实体，您与公司的聘用关系不会与您任何的法律义务以及合同义务有冲突矛盾之处，并且您有足够的资格与公司签订劳动合同。您同意将不向公司透露，或使用，或促使公司使用其他人的专利资料或商业机密。您表示并保证，您已经返还了属于前任各位雇主的所有专利资料和保密资料。

You represent that you are not employed by any other entity, that your employment by the Company does not violate any contractual or statutory obligations, and that you have full capacity to enter into an employment contract with the Company. You agree and warrant that you will not disclose to the Company, or use, or induce the Company to use any proprietary information or trade secrets of others. You represent and warrant that you have returned all proprietary and confidential information to its owners.

其他：

Miscellaneous:

若随后签订劳动合同，劳动合同将取代本函条款和内容。

The terms and provisions of this letter are subject to, and will be superseded by, the standard of employment contract to be signed.

本函中所提供的条款可分割。如果由于适用的法律法规的调整，某些条款内容失去合法性和可执行性，本函中其他条款的合法性和可执行性不受影响。

The various terms and provisions of this letter are severable and if any terms or provision is held to be invalid or unenforceable by applicable laws and regulations, such invalidity or unenforceability will not affect the validity or enforceability of the remaining terms or provisions in this letter.

本聘用意向书是基于您提供的背景及经验信息，包括您在简历和提交的应聘申请中提供的信息订立的。

In making this offer, we are relying on the information you have provided us about your background and experience, including information provided in your resume and the employment application documents that you may have submitted.

本聘用意向书的语言在任何情况下都应根据其含义公正地去理解，而不应任何一方无论是您还是公司有任何偏向。

The language in this letter will be construed as to its fair meaning and not strictly interpreted for or against either you or the Company.



请注意，本函及本函所包括的提议，自本函发出之日起 3 个工作日内有效。如果您接受以上条款，请在以下提供的空白区域签名，并将本函交还我们。如果您的报到日期有所提前，请提前 3 个工作日通知人力资源部。

Kindly note that this letter and the offer contained herein will remain valid for (3) working days from the date of the letter. If these terms are acceptable, please sign in the space provided below and return this letter to us. If you want to onboard ahead of schedule, please inform HR three working days ahead.

我们热切期待您加盟本公司。

We look forward to your decision to join the Company.

您真诚的,
Yours truly,

叶新忠 / Stephen YE

总经理
General Manager

我, **周尚军**, 在此接受以上聘任书, 同时知晓上海桂垚信息科技有限公司不对本人与前雇主解除雇佣关系而发生的相关费用负有任何责任。我将于 **2018 年 6 月 11 日** 到上海桂垚信息科技有限公司报到。

I, **ZHOU SHANGJUN**, hereby accept the above offer. I also understand that Guiyao Tech will not be liable for any compensation, which may be required for my release from my current employment. I will commence employment with Guiyao Tech on **JUN. 11th, 2018**.

签字:
Signature:

日期:
Date:
